

# The legal-exposure landscape

*When a negligently activated change splits the chain and people lose money,  
more parties are exposed than most realize:*

## **Negligence / neg. misrep.**

§4.1

Releasing activation code with known bugs and promoting its adoption; §552 is the cleaner route around the economic-loss rule (Biakanja on contested facts).

## **Tortious interference**

§4.2

A proponent with documented economic exposure who pushes a change that splits chains — especially if the promotion looks instrumental rather than principled.

## **Fiduciary duty**

§4.3

Unsettled, but Tulip Trading (UK Court of Appeal, 2023) confirmed the question is justiciable (claim discontinued 2024); the developer's process determines the answer.

## **Pool operators**

§4.4

Signaling on behalf of connected miners is a decision pools owe care over, reachable on contract or implied-covenant theories.

## **Regulatory & exchange**

§4.5

Splits trigger income recognition on forked coins (Rev. Rul. 2019-24), custodial conflicts, and exchange listing calls — not hypothetical; this happened in 2017.

**Following the Section 3 standards is a strong defense against every route.  
Compliance is the defense; the score is the exposure (§4.0).**